

## ● RAG Learning

## 3A.2 US Congress

Politics — Edexcel (9PL0) — Component 3A: Comparative Politics — USA

**Exam Tip:** Component 3 has two routes. This is **3A (USA)**; the alternative is **3B (Global Politics)**. You sit one, never both.

Congress is the first branch, and Article I is the longest article of the Constitution — the framers expected it to dominate. Whether it still does is the central examinable question.

**Bicameralism** — a legislature of two chambers with distinct composition and powers.

**Filibuster** — delaying or blocking a Senate measure by extending debate.

**Cloture** — the procedure ending debate; currently requires 60 votes for most legislation.

**Oversight** — scrutiny of the executive branch and the implementation of law.

**Divided government** — one party holds the presidency, another at least one chamber.

**Gerrymandering** — drawing district boundaries to advantage a party or group.

**Incumbency advantage** — the structural edge sitting members hold over challengers.

**Pork barrel** — federal spending directed to a member's district for local benefit.

**Caucus** — a grouping of members organised around party, ideology or shared interest.

### 1. Structure and powers

|             | House of Representatives                      | Senate                                       |
|-------------|-----------------------------------------------|----------------------------------------------|
| <b>Size</b> | 435 voting members, apportioned by population | 100 — two per state regardless of population |
| <b>Term</b> | 2 years; the whole House elected together     | 6 years; a third elected every two years     |

| Constituency     | A district                                                                              | A whole state                                                                                |
|------------------|-----------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------|
| Exclusive powers | Initiate revenue bills; impeach; elect the President if the Electoral College deadlocks | Ratify treaties (two-thirds); confirm appointments; try impeachments (two-thirds to convict) |
| Character        | Majoritarian, tightly rule-governed, leadership-driven                                  | Individualistic, slower, with unlimited debate by tradition                                  |

The Senate is generally regarded as the more powerful chamber because its exclusive powers — treaties, confirmations, impeachment trials — are the more consequential, its members serve longer, and each represents a whole state.

## Shared powers

Legislation requires both chambers in identical form. Both must agree on appropriations. A declaration of war requires both. A constitutional amendment requires two-thirds of each.

## 2. Functions

### Representation

| Model              | Claim                                          | Pressure in the US system                                         |
|--------------------|------------------------------------------------|-------------------------------------------------------------------|
| <b>Delegate</b>    | Act on constituents' instructions              | Strong — two-year House terms and primaries reward responsiveness |
| <b>Trustee</b>     | Exercise independent judgement                 | Weaker, though longer Senate terms permit it                      |
| <b>Mandate</b>     | Follow the party programme                     | Has strengthened sharply with polarisation                        |
| <b>Descriptive</b> | The legislature should resemble the population | Improving but incomplete on gender, race and class background     |

## Legislative

The process is deliberately obstructive: introduction, committee (where most bills die), subcommittee hearings and mark-up, floor debate under rules set by the House Rules Committee or by unanimous consent in the Senate, passage, conference or amendment exchange to reconcile the two versions, then presidential signature or veto. At almost every stage a small number of actors can stop a bill.

## Oversight

Committees investigate the executive, subpoena witnesses and documents, and hold public hearings. The Senate's confirmation power is oversight in advance. Impeachment is the ultimate instrument. The Government Accountability Office audits federal spending.

## 3. Committees

Committees are where congressional power actually sits. **Standing committees** are permanent and specialised; a chair who declines to schedule hearings can kill a bill without any vote of the chamber, and the overwhelming majority of bills die this way. Members build expertise over long service, which gives committee judgements weight. Senate committees conduct confirmation hearings, giving them direct influence over appointments and the judiciary.

The contrast with the UK is examinable and sharp: UK public bill committees are temporary, appointed for a single bill and controlled by the government, which is why the US committee system gives its legislature far more independent capacity than Parliament's equivalent.

## 4. The filibuster

Senate tradition permits unlimited debate. Ending it requires **cloture**, currently 60 votes, so most legislation effectively needs a supermajority and a minority of 41 can block. The threshold has been removed for nominations — most executive and judicial appointments in 2013, Supreme Court nominations in 2017 — so these now pass by simple majority.

| Defence | Criticism |
|---------|-----------|
|---------|-----------|

|                                                     |                                                                                               |
|-----------------------------------------------------|-----------------------------------------------------------------------------------------------|
| Protects the minority and forces negotiation        | A minority representing a small share of the population can block measures with broad support |
| Encourages broad coalitions and durable legislation | Layered on a chamber already weighted towards small states, it compounds malapportionment     |
| Preserves the Senate's deliberative character       | It is a Senate rule the Constitution nowhere requires, changeable by simple majority          |

## 5. Interpretations and debates

### Is Congress subordinate to the presidency?

**Yes:** it has ceded ground on war powers through repeated acquiescence, delegated broad rule-making to executive agencies, and the President now sets the legislative agenda through the State of the Union and the budget.

**No:** it retains the purse, confirmations and oversight, and an opposition Congress can block a President's domestic programme entirely — as it did for much of Obama's and Biden's terms.

**Judgement:** the checks operate only when the opposing party holds a chamber, so they function as *partisan* instruments rather than institutional ones. The separation of powers has been substantially displaced by the separation of parties — the framers expected members to defend their institution's prerogatives, and disciplined national parties gave them a stronger loyalty.

### Polarisation

Realignment sorted liberals and conservatives into separate parties, removing the ideological overlap that once supplied cross-party majorities. Primaries, safe districts and partisan media reward positioning towards the base. The consequences: less legislation, more governing by omnibus bill, reconciliation and executive action; oversight that tracks party control rather than institutional interest; and confirmation battles decided by raw majority power.

### Is the Senate undemocratic?

- **Equal state representation.** Wyoming's roughly 580,000 residents and California's nearly 40 million each elect two senators. Article V protects equal state suffrage from amendment without the consent of every state affected — the one genuinely unamendable provision.
- **The filibuster compounds it.** Forty-one senators can block, and because small states are overrepresented those 41 can represent a small fraction of the population.
- **Staggered terms insulate** the chamber from shifts in national opinion — though this was deliberate, and enables the long view its exclusive powers require.

**Exam Tip:** For a comparative question, the most productive contrast is **committees:** elected, expert, permanent and independent in the US; temporary and government-controlled in the UK. It explains why Congress can obstruct a President in ways Parliament cannot obstruct a Prime Minister, and it is a structural rather than a cultural explanation.

## Quick recall

- 435 House (2-year terms), 100 Senate (6-year, staggered thirds)
- House: revenue bills, impeachment. Senate: treaties, confirmations, impeachment trials
- Committees kill most bills; chairs control the schedule
- Filibuster: 60 votes for cloture; removed for nominations in 2013 and 2017
- Veto override: two-thirds of both chambers
- Oversight tracks party control, not institutional interest
- Wyoming ~580,000 and California ~40 million each get two senators
- Separation of powers displaced by separation of parties